

FIRST INFORMATION REPORT
(U/s 173 B.N.S.S.)

Book No. **1428**

Serial No. **020**

1. District: PS: Year: FIR No.: Date:
New Delhi CBI/ACB/New Delhi 2024 RC0032024A0048 11.12.2024

2. (1) Act - Bhartiya Nyay Sanhita Sections: 61(2)
(2) Act - PC Act 1988 Sections: 7
(as amended in 2018)
(3) Act - Sections:
(4) Other Acts & Sections-

3. (a) Suspected Offence- **Criminal Conspiracy, Demand of undue Advantage by public servant.**

(b) Day: Date: Time:

(c) Information received at PS: **CBI, ACB, New Delhi** Dated: **11.12.2024**

Entry No. **5** Date: **11.12.2024** Time: **01:25 P.M.**

4. Type of information – (Written / Oral): **Written**

5. Place of occurrence **Delhi**

(a) Direction & Distance from

Beat No. -

(b) Address:

(c) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant: credible source information

(a) Name : Sh. Vikram Sharma

(b) Father's/Husband's Name : S/o Sh. Anand Sharma

(c) Date of Birth :

(d) Nationality : Indian

(e) Passport No. **NA** Date of Issue **NA** - Place of issue **NA**

(f) Profession : **Private Person**

(g) Address : **R/o Village- Thana Khurd, Tehsil-Kharkhoda, Dist-Sonipat, Haryana - 131402**

7. Details of known/suspected/unknown accused with full particulars: -
(Attached separate sheet, if necessary)

1. **Shri Rahul Meena, Executive Engineer, DDA, Vikas Minar, 19th floor, DDA, New Delhi.**
2. **Shri Ankush, Asstt. Engineer, DDA, Vikas Minar, 19th floor, DDA, New Delhi.**

8. Reasons for delay in reporting by the complainant/informant: -

No delay

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen: -

11. Inquest Report/U.D. Case No., if any,: -

12. First information contents (Attach separate sheet, if required):

A written complaint dated 11.12.2024 has been received from Shri Vikram Sharma, S/o Shri Anand Sharma, R/o Village- Thana Khurd, Tehsil-Kharkhoda, Dist- Sonipat, Haryana - 131402 in CBI office and the same is enclosed herewith. The Complaint and subsequent verification report dated 11.12.2024 which are enclosed herewith, prima facie disclose commission of offences punishable under section 61(2) of Bhartiya Nyay Sanhita 2023 r/w section 7 of PC Act 1988 (as amended in 2018) and substantive offence thereof on the part of (1) Shri Rahul Meena, Executive Engineer, DDA, Vikas Minar, 19th floor, DDA, New Delhi, (2) Shri Ankush, Asstt. Engineer, DDA, Vikas Minar, 19th floor, DDA, New Delhi.

Therefore, a regular case under section 61(2) of Bhartiya Nyay Sanhita 2023, Section 7 of PC Act 1988 (as amended in 2018) has been registered against (1) Shri Rahul Meena, Executive Engineer, DDA, Vikas Minar, 19th floor, DDA, New Delhi, (2) Shri Ankush, Asstt. Engineer, DDA, Vikas Minar, 19th floor, DDA, New Delhi and entrusted to Sh. Bahadur Singh, Inspector, CBI, ACB, New Delhi for investigation.

To,
The SP,
CBI, ACB, Delhi

**Sub: Complaint against Sh. Ankush, Asst. Engineer and Sh. Rahul Meena,
Executive Engineer for demanding bribe amount of Rs. 03 lakhs- reg.**

Sir,

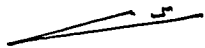
It is submitted that I am a contractor and takes the contract of maintenance and operation of swimming pools.

I had the contract of the swimming pool Yamuna Sports Complex of DDA, near Welcome Metro Station Yamuna Vihar, from 08.09.2023 to 07.12.2024 for its maintenance and operation. During the said contract, a bill no. **RKE/23-24/0134 dated-29.10.2024** of amount **Rs.1840982.60** with GST was passed and a bill of amount Rs.10 lakh (Approx.) is pending to be passed with DDA.

Sh. Ankush, Asst. Engineer and Sh. Rahul Meena, Executive Engineer both from DDA, Vikas Minar, 19th floor, DDA, New Delhi are demanding the amount of Rs.3 lakhs in connection with payment/passing the above said bill.

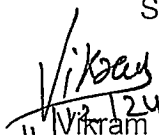
I do not want to give bribe to above said officials, therefore proper legal action may be taken against them.

Pl verify and report


11/12/2024

Imp (Dharambir.)

Sincerely


11/12/24
Vikram Sharma
S/o Shri Anand Sharma
R/o Vill- Thana Khurd,
Tehsil- Kharkhoda,
Dist- Sonapat,
Haryana-131402

Verification Memo dated 11.12.2024

CO-90/2024

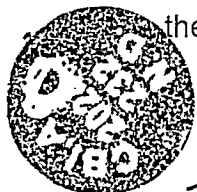
Today i.e. 11.12.2024, a complaint dated 11.12.2024 of Sh. Vikram Sharma S/o Sh. Anand Sharma, R/o- Village Thana Khurd, Tehsil- Kharkhoda, Dist. Sonipat, Haryana-131402 address to SP CBI ACB Delhi, which further endorsed to myself, i.e. Dharam Bir, Inspector, CBI, ACB, New Delhi for verification. Sh. Om Prakash, SI, CBI ACB Delhi was also directed to assist in the verification. The presence of independent witness Md. Rashid, Steno, (Emp. Code) 171940 O/o the Principal Chief Commissioner of Income Tax, CR Building, IP Estate, New Delhi- 110002 was secured in through Duty Officer, CBI ACB Delhi. Above named team assembled at CBI ACB Delhi at about 10:15 Hrs on 11.12.2024, the complainant Sh. Vikram Sharma and above named independent witness were mutually introduced to each other and the purpose of assembly was explained to all signatories of this memo.

The complaint dated 11.12.2024 submitted by the complainant was read over and explained to the independent witness. It has been alleged in the complaint that complainant had the contract of the swimming pool Yamuna Sports Complex of DDA near Welcome Metro Station Yamuna Vihar from 08 09 2023 to 07.12.2024 for its maintenance and operation. During the said contract a bill no RKE/23-24/0134 dated-29.10.2024 of amount Rs.1840982.60 with GST was passed and a bill of amount Rs 10 lakh (Approx) is pending to be passed with DDA.

It is further alleged that Sh. Ankush Asst. Engineer and Sh. Rahul Meena Executive Engineer both from DDA Vikas Minar, 19th floor DDA, New Delhi are demanding an amount of Rs 3 lakhs in connection with payment/passing the above said pending bills.

The complainant doesn't want to pay bribe and hence submitted the complaint to SP, CBI, ACB, Delhi for taking legal action against said DDA officials.

During the discussion with the complainant, he informed in the presence of independent witness that he has received around Rs.15 lakh against the bill mentioned in the complaint and both the suspects have been pressurizing him to give them 20% of the said payment as bribe. He further informed in the presence of independent witness



V/Kacur
11/12/24

Dharam Bir
11/12/24

1

Om Prakash
11/12/2024

M. Rashid
11/12/2024

that final measurement of the work executed by him is still pending and both the suspects have threatened him not to process the same until he gives them the demanded bribe.

In order to verify the allegations levelled in the complaint, a new memory card of 16 GB capacity and a new DVR (Sony made) were arranged. The memory card was taken out of its original packet in presence of independent witness. After explaining function of the DVR to the Complainant and the independent witness, the said memory card was inserted in the DVR. And after ensuring blankness of DVR and memory card, the introductory voice of the independent witness Md. Rashid was recorded through DVR in the said memory card at about 10:30 AM. Thereafter, at about 10:33 AM complainant Sh. Vikram Sharma received whatsapp call at his mobile no. 8896178888 from Suspect Sh. Ankush (Mobile no. 7599017818) at about 10:33 AM on today i.e. on 11-12-2024 and asked about his whereabouts on which complainant replied that he is coming to DDA office within 20 Minutes. Thereafter it was decided to visit DDA office in the vehicle of complainant Sh. Vikram Sharma.

Verification team along with independent witnesses and complainant reached in the area of DDA office at about 10:50 Hours and parked the vehicle at safe distance. On the way, Complainant Sh. Vikram Sharma briefed that he should not offer bribe to suspect officers and the demand of bribe must come from the side of suspect officers, Independent witness, Md. Rashid was also briefed to follow Sh. Vikram Sharma and try to overhear the conversation which might have with suspect officers or any other person, by avoiding any suspicion.

At about 1054 hrs, the DVR in recording mode and on hold position was given to Sh. Vikram Sharma which he kept the same on person thereafter, he along with Md. Rashid left for DDA office and remaining CBI team member remained in vehicle and also inspected the area of the said DDA office.

Complainant along with independent witness came back to CBI team and assembled in the parked vehicle at about 1148 Hrs. Thereafter, The DVR was taken back from Sh. Vikram Sharma and turned switched off.

Complainant Sh. Vikram Sharma was asked to narrate the incident of events on which complainant narrated that after entering in the premises of the said office of DDA, he made whatsapp call to Sh. Ankush to know about his whereabouts on which he



Vikram
11/12/24

Rashid
11/12/24

2

Rashid
11/12/2024

Ompurash
11/12/2024

informed that he is coming to the office soon. After that complainant made whatsapp call to another suspect Sh. Rahul Meena, he informed that he is just reached to office.

Complainant met to Sh. Rahul Meena and started conversation with him, in mean time Suspect Sh. Ankush also joined them.

Further complainant narrated that during conversation, complainant negotiated the demanded bribe amount of Rs. 3,00,000/- on which both suspect persons agreed to accept Rs. 2,80,000/- in connection with pass of bills as discussed in the allegation made in complaint dated 11.12.2024.

Further suspect persons, directed the complainant to deliver 2,00,000/- as part payment of demanded amount on today itself i.e. on 11.12.2024 and remaining Rs. 80,000/- to be delivered on tomorrow i.e. on 12.12.2024.

Thereafter, it was decided to move from DDA office to CBI office for further proceedings, on the way, complainant arranged Rs. 2,00,000/- from ICICI bank Sunder Nagar Branch, Delhi.

The independent witness Md. Rashid was asked to narrate the incident on which he stated that he saw the complainant to enter in the office but he could not enter in the office as security persons were asking about purpose etc.

The recorded conversation was heard on the spot/on the way to CBI office through DVR, which corroborated the version of the complainant.

The team reached CBI office at about 1245 Hrs. the above mentioned memory card used for recording the conversation in this verification was removed from the DVR and a copy of this memory card was prepared using write blocker for investigation purposes, in presence of independent witness. This memory card was then kept in its original plastic cover and then in original paper cover which was marked as "Q-1 in CO-90/24" and the paper cover was then kept in a brown envelope which was marked as "Q-1 in CO-90/24". Both the original paper cover and the brown envelope were signed by VO, Inspector Dharam Bir, SI Sh. Omprakash, complainant Sh. Vikram Sharma, and independent witness Md. Rashid. This envelope was sealed with CBI brass seal.

The specimen seal impression in lac and ink has been taken on separate sheet of paper and these sheets were signed by the independent witness and Inspector Dharam



Vikram
11/12/24

Dharam
11/12/24

3

Rashid
11/12/2024

Omprakash
11/12/2024

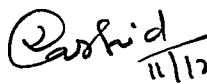
Bir. The facsimile impression of seal was also taken in ink on each page of verification Memo.

The CBI seal is being handed over to the independent witness Md. Rashid under acknowledgement with the direction to produce the same as and when required by lawful authority.

The verification has prima facie revealed that Sh. Ankush, AE and Sh. Rahul Meena, Ex. En. have demanded Rs.3,00,000/- from the complainant which was reduced to Rs.2,80,000/- during the verification and they further agreed to accept Rs.2,00,000/- as part payment of the bribe amount as motive/reward. It is, therefore, recommended that an FIR under section 61 (2) BNS, 2023 r/w section 7 of PC act, 1988, (as amended in 2018) and substantive offences thereof may kindly be registered against Sh. Ankush, Asst. Engineer and Sh. Rahul Meena, Executive Engineer, both from the O/o DDA situated at 19th Floor, Vikas Minaar, New Delhi.

The verification memo has been prepared in CBI Office and all the signatories have signed on the same in token of its correctness. The verification proceedings were concluded at about 1315 hrs.

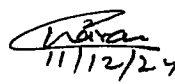
Independent Witness

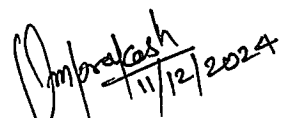

11/12/2024
Md. Rashid

Complainant


11/12/24
Sh. Vikram Kumar.

Verification Officer


11/12/24
Dharam Bir,
Inspr., CBI, ACB
New Delhi


11/12/2024
Om Prakash
Sub-Inspector, CBI, ACB
New Delhi



Received one CBI - brass seal

11/12/2024
md. Rashid⁴

13. Action taken : Since the above information reveals commission of offence (s) u/s as mentioned at Item no. 2

(1) Registered the case and took up the investigation or

Regular Case is registered

(2) Directed (Name of IO): Rank: No. Took up for investigation

Shri Bahadur Singh Inspector, CBI, ACB, Delhi

(3) Refused investigation due to or

(4) Transferred to PS - District - on point of jurisdiction -

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of Officer in-charge
Police Station:

Name: **V.M. Mittal**
Rank: **Supdt. of Police**
CBI:ACB: Delhi

15. Date and time of dispatch to the Court

Signature of recording Officer with date